

25STCV02767 25STCV02767

County: los-angeles

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Case Number: 25STCV02767 Hearing Date: July 14, 2026 Dept: 511

Tentative Ruling

Judge Upinder S. Kalra, Department 511

HEARING DATE: July 14, 2026

CASE NAME: Jim Cornette, et al. v. Colin Thomson, et al.

CASE NO.: 25STCV02767

MOTION FOR RELIEF FROM JURY WAIVER

MOVING PARTY: Plaintiffs Jim Cornette and Arcadian Vanguard, LLC

RESPONDING PARTY(S): Defendant Colin Thomson

REQUESTED RELIEF:

1. An order granting relief from waiver of jury trial.

TENTATIVE RULING:

1. Motion for relief from jury waiver is GRANTED.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On January 31, 2025, Plaintiffs Jim Cornette and Arcadian Vanguard, LLC (Plaintiffs) filed a Complaint against Defendant Colin Thomson, Christine Thomson, Rod Thomson, Matthew Yu1, Podcastone, Inc., and Liveone, Inc. (Defendants) with causes of action for: (1) Cal. Penal Code § 496(a); (2) Negligence, Negligence Per Se, and Negligent Infliction of Emotional

Distress; (3) Fraud; and (4) Unfair Business Practices.

According to the complaint, Plaintiffs have been equal partners in producing two highly successful podcasts. Plaintiffs allege that Defendants, via Plaintiffs' podcast agent Kast Media, either wrongfully controlled and withheld earned monies or received wrongfully withheld monies. Plaintiffs further allege that Defendants stopped making payments after January 2023.

On May 28, 2025, Defendants Christine, Rodney, and Yu (Moving Defendants) filed a motion to quash which the court GRANTED in full.

On August 7, 2025, Plaintiffs filed the operative First Amended Complaint (FAC).

On September 10, 2025, Defendants Podcast One and LiveOne, Inc. (Podcast Defendants) filed a demurrer with Motion to Strike to the FAC. The court SUSTAINED the demurrer without leave to amend as to the first, second, third, seventh, and eighth causes of action. The court SUSTAINED the demurrer with leave to amend as to the fourth and sixth causes of action. The court OVERRULED the demurrer to the fifth cause of action. The court DENIED the motion to strike.

On October 15, 2025, Defendant Colin Thomson filed a demurrer with Motion to Strike to the FAC. The court SUSTAINED the demurrer without leave to amend as to the first, second, third, and eighth causes of action. The court SUSTAINED the demurrer with leave to amend as to the sixth cause of action. The court OVERRULED the demurrer as to the fourth, fifth, seventh, and ninth causes of action.

On October 17, 2025, counsel for Defendants Podcast One and LiveOne, Inc. filed motions to be relieved as counsel which the court GRANTED.

On March 11, 2026, the Podcast Defendants filed an answer to the FAC.

On March 11, 2026, Thompson filed a general denial.

On March 23, 2026, the Podcast Defendants filed an amended answer.

On March 23, 2026, Plaintiffs filed a demurrer to Thompson's general denial.

On May 8, 2026, Plaintiffs filed a motion for relief from waiver of jury trial.

On May 27, 2026, Thomson filed an amended answer to the FAC.

On June 30, 2026, Thomson filed an opposition to Plaintiffs' motion for relief from jury waiver.

LEGAL STANDARD:

A party waives trial by jury by failing to timely post the jury fee deposit. (CCP § 631(f)(5).) "The court may, in its discretion upon just terms, allow a trial by jury although there may have been a waiver of a trial by jury." (CCP § 6311(g).)

ANALYSIS:

Plaintiffs contend relief from jury waiver is warranted because they posted jury fees before the second case management conference, the failure to post in advance of the initial case management conference was due to counsel's administrative oversight, Plaintiffs always intended a jury trial, and Defendants will not be prejudiced since trial is set for November 29, 2027.

Thomson argues relief is not warranted because Plaintiffs intentionally failed to post fees thinking they would not be penalized for it, the request is untimely, and they will suffer prejudice due to expended additional resources to prepare for a jury rather than bench trial.

Here, relief is warranted. First, Plaintiffs explain their mistaken belief that fees would be due at a further case management conference since there were motions scheduled for the first case management conference. (Declaration of Andre Verdun ¶¶ 3, 6.) Second, Plaintiffs indicated they sought a jury trial both in their pleadings and by subsequently posting jury fees in advance of the second case management conference. (Id. at ¶¶ 4-5.) Third, there is no undue prejudice to Defendants since trial is not set until November 25, 2027 – more than one year away. This means Defendants have plenty of time to prepare for a jury trial.¹ Therefore, relief is warranted.

Accordingly, the court GRANTS Plaintiffs' motion for relief from jury waiver.

CONCLUSION:

For the foregoing reasons, the court decides the pending motion as follows:

1. Motion for relief from jury waiver is GRANTED.

Defendant Thomson is to give notice.

IT IS SO ORDERED.

Dated: July 14, 2026 _____ Upinder S. Kalra

Judge of the Superior Court